

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSICA BRIGNOLO,

Petitioner

VS.

SIMON THORNEYCROFT,

Respondent

) Case Number: FDI-22-796491

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jessica Brignolo (Mother) and Respondent Simon Thorneycroft (Father). The parties married on 6/12/2003. The parties agree their date of separation was in 2022 (but disagree as to the exact date), for a marriage of at least 18 years. The parties have one minor child, Siena (DOB: 9/26/2008, age 17). Mother is represented by attorney David Blacker. Father is represented by attorney Randy Rabidoux.
- 2) After the 12/11/2025 hearing date, per the Findings and Order After Hearing filed 12/23/2025, the Court made a finding that guideline spousal support would amount to \$6,349 per month based on: \$0 in income for Mother, \$11,390 per month for Father's salary and wages, \$7,451 in average monthly draws by Father from his business Perspective Branding, and \$9,714 in monthly personal expenses paid on Father's behalf by Father's business. The Court, however, awarded to Mother above-guideline temporary spousal support of \$8,500 per month effective 12/1/2025 after considering Mother's needs (including her monthly mortgage payment of \$3,593 and property tax payment of \$1,297) and Father's ability to pay. The Court noted that this amount was less

1 than the \$10,000 per month in support that Mother had requested given that the parties have been
2 separated for over three years, the Court's finding that Mother's earning capacity is not \$0, and
3 the fact that the minor child is in Father's care 100% of the time. The Court set a review hearing
4 date on 4/21/2026 (which was later continued to 5/7/2026 by agreement of the parties) "to review
5 child and temporary spousal and to review Father's request for a Gavron warning." The Court
6 also noted, "Given what has been pled to date, the Court intends to impute full-time California
7 minimum wage income of \$16.90 per hour to Mother at the next hearing date..."

8 3) On 4/28/2026, Mother filed a Supplemental Declaration. Mother states she has been diagnosed
9 with Major Depressive Disorder, Post-Traumatic Stress Disorder, and Social Phobia. Mother
10 states that these conditions limit her ability to obtain and maintain employment. However,
11 Mother states she has actively pursued employment over the last three months. Mother states she
12 has not had success in securing a position of employment despite good faith work search efforts
13 and the Court should not impute income to her. Mother also states that when looking at Father's
14 net income of \$200,000 from his business for 2025 and other factors, the guideline spousal
15 support figure should be higher than what the Court ordered in December 2025. Mother requests
16 that the Court increase her spousal support to \$9,423 per month or \$10,176 per month depending
17 on which proposed support calculation the Court chooses to use.

18 4) On 4/28/2026, Mother filed a Supplemental Statement of Support Calculation.

19 5) On 4/28/2026, Father filed a Declaration of himself and his attorney. Father states that his
20 business income for 2026 is lower than what it has been for 2025. Father asks the Court to
21 recalculate support so that it is lower and to impute Mother with full-time minimum wage
22 income. Father states Mother has not made an earnest effort to secure actual work. Father's
23 attorney also notes that there is "no showing that Petitioner receives disability benefits, has
24 applied for disability benefits, or has otherwise pursued a disability determination through any
25 governmental or insurance process."

26 6) On 4/28/2026, Father filed a declaration of CPA Jessica Little. Ms. Little states that the income
27 figures for Father upon which the current guideline support calculation is based are inaccurate
28 and also include errors by Father in his previously filed paperwork which led to higher than
29 accurate income figures.

- 1 7) On 4/30/2026, Mother filed Procedural Objections asking the Court to strike Father's attorney
2 declaration and the declaration of CPA Jessica Little. Mother argues, "Simon is treating this
3 review hearing as an opportunity to fast track a motion to modify temporary support in violation
4 of CCP Sec. 1005. There has been insufficient notice or an opportunity to respond to such
5 request for modification of temporary support. Jessica has not had an opportunity to review or
6 investigate Simon's 2026 claimed income despite repeated requests for documentation." Mother
7 also asks the Court to strike Father's Income and Expense Declaration filed 4/28/2026 because
8 Father provided no 2025 income documents.
- 9 8) On 5/1/2026, Father filed a Reply Memorandum of Points and Authorities. In addition to other
10 arguments made, Father argues that Mother "asks the Court to treat 2025 as the sole measure of
11 Simon's current earning capacity, while disregarding the loss years that preceded it and the sharp
12 decline reflected immediately afterward."
- 13 9) On 5/1/2026, Father filed an Opposition to Petitioner's Objections and Motion to Strike. Father
14 argues, "The [objected to] submissions do not raise unrelated claims or inject new subjects into
15 the case. They address the same support issues already before the Court and provide updated
16 evidence needed for the Court to discharge its review function... A support review hearing
17 necessarily requires current information."
- 18 10) The Court notes that the parties attended a Mandatory Settlement Conference on 4/3/2026 and a
19 Judicial Settlement Conference on 4/27/2026 but did not reach any agreements. There is a trial
20 setting conference currently set for 6/1/2026 in Dept. 405.

21 **1) Findings and Order**

- 22 1) Mother's request to strike Father's attorney's declaration, CPA Jessica Little's declaration, and
23 Father's Income and Expense Declaration (all filed on 4/28/2026) is denied.
- 24 2) The Court finds this review hearing was set for the limited purpose to review whether to impute
25 full-time minimum wage income to Mother and to issue a Gavron warning against Mother. To the
26 extent either party is requesting that the Court make new findings regarding Father's income
27 available for support, those requests are denied without prejudice. Either party may file a motion
28 to modify support if the parties believe there has been a material change in circumstance
29 impacting Father's income available for support.

- 1 3) Effective 5/15/2026, the Court hereby imputes to Mother full-time minimum wage income of
2 \$16.90 per hour, which amounts to \$2,929 per month. The Court notes that although Mother
3 states she has mental health diagnoses, Mother has not presented evidence to show that her
4 mental health diagnoses have disabled her and rendered her unable to work. The Court finds
5 Mother has the ability and opportunity to earn full-time minimum wage income. The Court also
6 finds that imputation of this amount to Mother is in the best interest of Siena, who is in Father's
7 care 100% of the time and is receiving no financial support from Mother at this time.
- 8 4) In accordance with the updated XSpouse calculation attached hereto and incorporated herein, the
9 imputation of income to Mother results in the following guideline support figures: \$5,104 in
10 temporary guideline spousal support payable by Father and \$469 in guideline child support
11 payable by Mother, for a net amount of \$4,635 per month in net support payable by Father to
12 Mother.
- 13 5) Effective 5/15/2026, the Court finds good cause to award to Father guideline child support of
14 \$469 per month payable by Mother. The Court also finds good cause to award to Mother effective
15 5/15/2026 above-guideline temporary spousal support of \$6,969 per month, for the reasons
16 already set forth in the Findings and Order After Hearing filed 12/23/2025. This results in net
17 support owed by Father to Mother of \$6,500 per month.
- 18 6) As the Court is imputing full-time minimum wage income to Mother and because Father has not
19 presented evidence to show that Mother's earning capacity is higher than full-time minimum
20 wage income, the Seek Work Order against Mother is terminated effective immediately. For these
21 same reasons, the Court also denies Father's request for a Gavron warning.
- 22 7) All other orders set forth in the Findings and Order After Hearing filed 12/23/2025 not in conflict
23 with this order shall remain in full force and effect.
- 24 8) Father's attorney shall prepare the Findings and Order After Hearing.
- 25 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
26 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
27 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
28 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
29 proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	1	0	2026			
% time with NCP	0.00 %	0.00 %				
Filing status	HH/MLA	SINGLE	GUIDELINE	Comb. net spendable	21482	21596
# exemptions	2 *	1 *	Nets(adjusted)	Percent change	0%	1%
Wages+salary	11390	2929	Father	Father		
Self-employed income	7451	0	Mother	Payment cost/benefit	-4635	-4573
Other taxable income	9714	0	Total	Net spendable income	14181	14243
TANF+CS received	0	0	Support	Change from guideline	0	62
Other nontaxable income	0	0	Addons	% of combined spendable	66%	66%
New spouse income	0	0	Guideln CS	% of saving over guideline	0%	54%
401(k) employee contrib	2583	0	S.Clara SS	Total taxes	6747	6775
Adjustments to income	0	0	Total	Dep. exemption value	0	0
SS paid prev marriage	0	0	CS range: -427--469	# withholding allowances	0w	0w
CS paid prev marriage	0	0		Net wage paycheck	5577	5577
Health insurance	2993	0		Mother		
Other medical expense	0	0		Payment cost/benefit	4635	4686
Property tax expense	978	951		Net spendable income	7301	7353
Ded interest expense	1972	1967	Proposed	Change from guideline	0	52
Charitable contributions	0	0	Tactic 9	% of combined spendable	34%	34%
Misc tax deductions	0	0	CS	% of saving over guideline	0%	46%
Qual bus income ded	0	0	SS	Total taxes	262	120
Required union dues	0	0	Total	Dep. exemption value	0	0
Mandatory retirement	0	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving	Net wage paycheck	2361	2361
Other GDL deductions	0	0	Releases			
Child care expenses	0	0	Released to Mother			

Father pays Guideline SS, Proposed SS

Mother pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	100 - 0	0	0	0	Father	469	Mother	469	Mother
	100 - 0	0	0	0	Father	469	Mother	469	Mother